

**TENTATIVE RULINGS
DEPARTMENT C11 - LAW AND MOTION CALENDAR**

Judge Jonathan Fish

September 14, 2026

LAW AND MOTION IS HEARD ON MONDAYS AT 1:30 P.M.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. Parties must comply with the Court's policy on the use of privately-retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#);
- Please see the Court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 5 p.m. on the preceding Friday. Do NOT call the Department for a tentative ruling if none is posted. Tentative rulings may not be posted on every case – or may be posted the morning of the hearing – due to the Court's other commitments or the nature of a particular motion. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on tentative rulings: If **all** counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5211. Please do not call the Department unless **all** parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature, if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Parties are referred to the Court's "Appearance Procedures and Information – Civil Unlimited and Complex" and "Guidelines for Remote Appearances" available on the Public Website.

#	Case Name	
1	Corona vs. Discount Courier Services, Inc. 2025-01518743	Motion for Leave to File Amended Complaint Continued to 10/26/2026
2	Di Lorenzo vs. Asset Collection Enforcement Services, Inc. 2026-01551839	Demurrer to Complaint Continued to 09/28/2026
3	Khatibi vs. California Department of Health Care Servies 2026-01542329	Demurrer to Complaint Court has recused itself. Case to be reassigned.
4	Lipana vs. Fitness International, LLC 2025-01484939	Motion for Summary Judgment and/or Adjudication Off calendar

5	Milton vs. Mercedes-Benz USA, LLC 2025-01514755	Motion to Enforce Settlement The Court grants Plaintiffs Randy Milton and Karen Milton’s Motion to enter judgment against Defendant Mercedes-Benz USA LLC pursuant to the parties CCP §998 Agreement. <u>Legal Standard</u> Where the statutory requirements are met, the court may, upon motion, enter judgment pursuant to the terms of a settlement agreement. (CCP §664.6). The statutory procedure under § 664.6 provides an efficient alternative to resolution of disputes arising over settlement agreements. The court is empowered to enter judgment where parties to pending litigation stipulate to a settlement either: — orally before the court; or — in a writing signed by the parties or their counsel outside court. [CCP § 664.6(a), (b) (amended eff. 1/1/21)] The stipulation must conform to the same requirements necessary for enforcement of the settlement agreement; i.e., it must be made: — <i>during</i> pendency of the case (not after the case has been dismissed in its entirety); — if oral, by the parties themselves (not an agent); — if in writing, by the parties or their counsel; or if a party is an insurer, by an agent who is authorized in writing by the insurer to sign on the insurer's behalf. [CCP § 664.6(a), (b) (amended eff. 1/1/21).] Disputes regarding the terms of the settlement (or other disputed facts) may be adjudicated on a CCP § 664.6 motion, on the basis of declarations or other evidence. (<i>Malouf Brothers v. Dixon</i> (1991) 230 Cal.App.3d 280, 284; <i>Machado v. Myers</i> (2019) 39 Cal.App.5th 779, 795-796,—court may resolve reasonable disputes over terms of settlement agreement but may not modify terms from what was agreed to by parties.) In ruling on a motion under CCP § 664.6, the trial judge may receive oral testimony, or may determine the motion upon declarations alone. (<i>Corkland v. Boscoe</i> (1984) 156 Cal.App.3d 989, 994.)
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On the other hand, “nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.” (*J.B.B. Investment Partners, Ltd. v. Fair* (2014) 232 CA4th 974, 984; *City of West Hollywood v. Kihagi* (2017) 16 CA5th 739, 755-756 (J. Rothschild, concur. & dissent. opn.) (citing text); *Machado v. Myers* (2019) 39 CA5th 779, 790; *BTHHM Berkeley, LLC v. Johnston* (2024) 100 CA5th 1220, 1225-1226—Civ. C. § 3287 did not authorize award of prejudgment interest on judgment entered pursuant to CCP § 664.6 where parties reached their own agreement about what compensation would be owed for damages that would otherwise be addressed by prejudgment interest.)

Merits

Defendant Mercedes-Benz USA, LLC accepted Plaintiffs Randy Milton and Karen Milton 998 Offer to Compromise on February 5, 2026. (Decl. Rotman ¶ 1, Ex. 1; Tingen Decl., Ex. A.)

On February 11, 2026, Plaintiffs provided MBUSA with the current registration and payoff information as required by the Agreement. (Decl. Rotman, Ex. 2.)

On Friday February 12, 2026 at 8:26 p.m., Plaintiffs’ Counsel provided Defense Counsel with the W-9 required to make the settlement payment. (Tingen Decl., Ex. C.)

Plaintiffs argue that the 998 Offer indicates that regardless of the surrender scheduling, Defendant was required to pay the settlement funds to Plaintiffs’ counsel no later than March 13, 2026 – 30 days after Plaintiffs’ provided the payoff information. (Decl. Rotman, Ex. 1, ¶ 5.)

Defendant sent payment on Monday, March 16, 2026 via overnight mail. (Tingen Decl., ¶¶4-5.)

Plaintiffs’ counsel did not receive the settlement funds until March 17, 2026. (Decl. Rotman, ¶ 9.)

Defendant argues that it could not make payment without the W-9, which was provided on February 12 after hours.

Defendant reasons that the 30-day period should start to run on February 13, 2026, the business day that it received the W-9 information. The Agreement says that payment is to be made within 30 days of receipt of the payoff amounts “unless circumstances caused

by Plaintiff result in delay or pursuant to an agreement of counsel.” Defendant reasons that not providing a W-9 was a delay caused by Plaintiffs.

The Court disagrees.

Plaintiffs provided the W-9 within a reasonable time. The Agreement does not provide that the 30-day period starts when the W-9 information is provided. Rather, the Agreement plainly says that the 30 days starts from receipt of the payoff information. The W-9 is distinct from the “payoff information”. “Payoff information” is not defined; but the parties do not appear to dispute that it was provided on February 11, 2026. (See e.g. Tingen Decl., ¶¶5, 8.)

The specific clauses at issue are as follows:

Plaintiffs will provide the payoff information for the subject vehicle (with the full account number) or copy of the title and current registration upon receipt of the fully executed offer by Defendant...

MBUSA shall send payment of both the Settlement Funds via overnight mail to Plaintiffs’ counsel Wirtz Law APC and the payoff amount directly to the financial institution lienholder/titleholder within three (3) days after the surrender of the subject vehicle....

Regardless of the surrender scheduling, MBUSA shall send payment of the Settlement Funds, less any payoff which MBUSA will pay directly to the lienholder (if applicable) within 30 days, unless circumstances caused by Plaintiff result in delay or pursuant to an agreement of counsel.

If MBUSA does not timely perform pursuant to the terms set forth herein, Plaintiffs shall be entitled to interest at the rate of 10% per annum, from the date of acceptance of this offer until the date Settlement Funds are received by Plaintiffs’ attorneys.

(Rotman, Ex. 1; Tingen Decl., Ex. A, ¶¶2-6, emphasis added.)

Thus, Defendant was obligated to overnight payment to Plaintiffs’ Counsel within 30 days from February 11, 2026 – or by Friday March 13, 2026.

Defense Counsel did not send payment until March 16, 2026 and it was not received until March 17, 2026.

		The consequence of the late payment that Defendant owes interest per the parties' Agreement. The Agreement says that the rate of 10% interest shall be paid from the acceptance date, which was February 5, 2026, to the date of <i>receipt</i> of payment, which was March 17, 2026, at the rate of 10%. This amounts to \$24.66 per day for 41 days = \$1,011.60. Plaintiffs are ordered to prepare a proposed judgment for the Court's signature based on this Order and the 998 Agreement. Plaintiffs are ordered to serve notice.
6	Murphy vs Ontario Health Education Company Inc. 2026-01550707	Motion to Compel Arbitration Case Management Conference Off calendar. PAGA case has been transferred to the Complex Department CX105.
7	Prato Properties LLC vs. Lee & Associates Commercial Real Estate Services, Inc. - Irvine, a California Corporation 2021-01234131	Motion for Reconsideration Defendant Thomas Gioia's Motion for Reconsideration is denied. Defendant Gioia moves for reconsideration of the minute order issued March 13, 2026 (ROA 343). When an application for an order has been "refused in whole or in part," a party seeking reconsideration under subsection (a), can make an application to "modify, amend, or revoke the prior order." The application must be made "to the same judge or court" within "10 days after service upon the party of written notice of entry of the order." The application must be "based upon new or different facts, circumstances, or law." Additionally, the application must be accompanied by an affidavit, stating "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Code Civ. Proc. § 1008, subd. (a).) Here, Defendant Gioia submits a supporting declaration from his counsel, wherein his counsel (Thomas Aplin) states: There was no evidence in the record that I knew before trial that Mr. McFarlin had been suspended by the State Bar. The Court of

Appeal bases its finding solely on a billing entry in Mr. Collin's motion. (Opinion, p. 7.) The Court of Appeal admits there was no evidence in the record regarding what I knew and when I knew it. The true facts are that I did not know that McFarlin had been suspended before the trial that Appellant Prato failed to attend, and, equally importantly, I had no personal knowledge about how to communicate with Ms. Prato prior to trial. I did not have her email address or telephone number and had no means to communicate directly with her at that time. (ROA 346 [Aplin Decl. at ¶ 2].)

The Court finds this declaration does not satisfy the requirements of CCP section 1008. There are no “new or different facts, circumstances, or law” that warrant reconsideration, or a different ruling on the fee motions.

“After a judgment or order is reversed on appeal,... subsequent trial court proceedings are subject to any *specific directions* given by the appellate court in connection with the remand, such as a partial retrial or entry of a particular judgment.” (Cal. Prac. Guide Civ. App. & Writs at ¶ 14:140, emphasis in original.) Where, as here, a reversal is accompanied with directions requiring specific proceeding (i.e., to reconsider the fee motions), “[t]hose directions are binding on the trial court and *must* be followed. Any *material variance* from the directions is unauthorized and *void*” (emphasis in original). (Cal. Prac. Guide Civ. App. & Writs at ¶ 14:149, citations omitted.)

In the Opinion, here, the appellate court vacated “the judgment” (which the appellate court noted refers “to the fee award, and not the underlying judgment”) and held “it was an abuse of discretion for the court to grant the (fee) motions.” (Opinion at p. 18.) The appellate court remanded the matter “with directions to reconsider respondents’ motions for attorney fees, taking into account our interpretation of section 286 herein.” (Opinion at p. 19.)

If Defendant Gioia was unhappy with the Court of Appeal’s decision, his remedy was to seek a rehearing *in the Court of Appeal*. (Cal. R. Ct Rule 8.268(a)(1).) Defendant also could have sought review from the California Supreme Court. (Cal. R. Ct. Rule 8.500(a)(1).) However, it is not appropriate for the trial court—a court of inferior jurisdiction—to “overrule” the decision of the appellate court, which has superior jurisdiction. (*Auto Equity Sales, Inc. v. Superior Court of Santa Clara County* (1962) 57 Cal.2d 450, 455.)

The Clerk is ordered to give notice of the ruling.

		Status Conference re: Appeal Status Conference is off calendar
8	Soule vs. Ascensus LLC 2025-01535494	Motion to Strike Portions of the FAC Defendant Ascensus LLC's motion to strike portions of plaintiff Luke Soule's first amended complaint ("FAC") is denied in part and granted in part. The motion is denied as to punitive damages; it is granted with 21 days leave to amend as to injunctive relief. Defendant's request for judicial notice is granted as to the existence of the Individual 401(k) Trust Agreement (the "Trust Agreement") between Plaintiff's employer and Vanguard Fiduciary Trust Company that is alleged in the FAC. To the extent Plaintiff's declaration in support to fits opposition set forth facts outside of the FAC, the court did not consider it. Plaintiff's FAC Plaintiff alleges that his 401k account was transferred by Vanguard to Defendant, rather than E*TRADE as Plaintiff directed, without Plaintiff's authorization and then, when Plaintiff sought to have his account moved to E*TRADE, Defendant improperly liquidated mutual funds in his 401K account before transferring rather than transferring in kind assets. Defendant did this in accordance with its own policies, in order to make money, and despite (i) Plaintiff's repeated communication seeking in kind transfer and (ii) lacking authority to sell Plaintiff's mutual shares. [FAC, ¶¶ 17-27, 30, 31, 32-37.] As a result of this liquidation and delay in availability of funds, Plaintiff suffered loss because by the time the money was available to him Plaintiff could repurchase fewer shares of the same mutual funds than Plaintiff held immediately prior to the liquidation. This share shortfall resulted because the funds' net asset values increased during the period Plaintiff was involuntarily out of the market. [FAC, ¶¶ 28-29.] Based on these allegations, Plaintiff asserts causes of action for: (1) conversion; (2) negligence; (3) unfair business practices (violation of B&P Code §17200); and (4) money had and received.

In addition to compensatory damages, Plaintiff seeks punitive damages and injunctive relief. [FAC at 20-21 (prayer).]

Legal Standard

A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. §436. “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not support by the allegations of the complaint. Code Civ. Proc. §431.10(b).

A motion to strike is limited to the face of the complaint, including matters that may be judicially noticed. Code Civ. Proc. §437(a).

Discussion

Punitive Damages

Civil Code section 3294 provides that punitive damages may be awarded in an action for breach of an obligation not arising from contract, if the plaintiff proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. “Malice” means conduct that is intended to cause injury or despicable conduct that is carried on with a willful and conscious disregard of the right and safety of others. Civ. Code §3294(c)(1). “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. Civ. Code §3294(c)(2).

At the pleading stage, the complaint must allege facts supporting circumstances of oppression, fraud, or malice. *See Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166 (“The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation].”). A corporate defendant may not be liable for punitive damages based on the acts of its employees unless the plaintiff alleges and proves that an officer, director or managing agent of the corporation: (1) was personally guilty of oppression, fraud or malice; or (2) had advance knowledge of, authorized, or ratified the wrongful conduct for which the damages are awarded. Civ. Code § 3294(b).

The same liberal policy regarding amendments that applies to the sustaining of demurrers applies for motions to strike. If a defect may be correctible, leave to amend should usually be given. *Grieves v. Superior Court*, 157 Cal.App.3d at 168.

In *Taylor v. Superior Court* (1979) 24 Cal. 3d 890, the California Supreme Court ruled that nonintentional torts may form the basis for punitive damages when the conduct constitutes a conscious disregard of the rights or safety of others. *Id.* at 896-96. The plaintiff must establish, however, that the defendant was aware of the probably dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences. *Id.* at 895-96.

In his FAC, Plaintiff alleges in meaningful detail his repeated communications with Defendant in an attempt to get an in-kind transfer and Defendant's representatives' actions, as alleged by Plaintiff, showing disregard for Plaintiff's requests and interests coupled with and awareness of what they were doing. [FAC, ¶¶21-35, 37.]

Plaintiff also alleges involvement and ratification by Defendant's managing agents. [FAC, ¶¶ 36, 39.]

Defendant makes two arguments in support of its motion to strike punitive damage allegations and prayers in Plaintiff's FAC. First, Defendant points to a limitation of damages provision in Plaintiff's employer's Trust Agreement with Vanguard. Second, Defendant argues that Plaintiff's claims are, at best, contract claims rather than tort claims so punitive damages are not available.

As to the Trust Agreement, on the face of the FAC (and the Trust Agreement) it is not necessarily so that Defendant may enforce provisions of the Trust Agreement against Plaintiff or that the limitation of liability would in any event be enforceable. *See* Civ. Code §1668 ("All contracts which have for their object, directly or indirectly, to exempt any one from responsibility for his own fraud, or willful injury to the person or property of another, or violation of law, whether willful or negligent, are against the policy of the law.")(footnote omitted).

As to the claims asserted, a plaintiff is the master of his complaint. Plaintiff has chosen to assert tort claims (negligence, conversion), a statutory claim, and a common count. He has not sued on any contract.

Moreover, the existence of a contractual relationship does not necessarily foreclose the possibility of tort liability.

While is true that the California Supreme Court has made clear contract law and tort law are separate and cannot be permitted to elide given their differences, it has also recognized that even where a

contract exists the violation of an independent duty gives rise to tort liability. *See Applied Equipment Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal.4th 503, 514–515; *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 992–993.

Defendant contends that Plaintiff's allegations ground his claims in the Trust Agreement.. [See FAC, ¶¶ 9, 12-15.]

It is true that Plaintiff alleges the terms of the Trust Agreement and Defendant's awareness of those terms. [*Id.*, ¶¶ 8-15.] But he does not roots his claims, or his allegations of Defendant's obligations, in that contract. Plaintiff does not allege that Defendant was Vanguard's successor-in-interest. Rather, Plaintiff alleges that *Defendant* "held itself out as a successor to Vanguard's trustee role upon receiving the transferred assets." [FAC, ¶ 12.] For himself, he alleges that Defendant was not authorized to receive and manage his retirement assets. [FAC, ¶ 20.]

For this reason, the court cannot conclude at this point that Plaintiff's causes of action *must* be contract claims or nothing such that his punitive damage claims necessarily fail. Accordingly, the motion to strike punitive damage is denied.

Injunctive Relief

"Injunctive relief is appropriate only when there is a threat of continuing misconduct. (Code Civ. Proc., § 525 ["injunction is a writ or order requiring a person to refrain from a particular act"]; *Gafcon, Inc. v. Ponsor & Associates* (2002) 98 Cal.App.4th 1388, 1403, 120 Cal.Rptr.2d 392, fn. 6 (*Gafcon*).)" *Madrid v. Perot Systems Corp.* (2005) 130 Cal.App.4th 440, 463. "'Injunctive relief has no application to wrongs which have been completed [citation], absent a showing that past violations will probably recur.'" *Id.* at 465 (finding B&P Code §17200 does not permit injunction under broader circumstances then general).

Here, Plaintiff has not alleged ongoing conduct by Defendant. As alleged, Defendant's acts as to Plaintiff are completed. Nor does Plaintiff adequately allege either that others are being subjected to ongoing conduct or that he is bringing claims on behalf of others. [See FAC, ¶¶ 1, 35, 57.]

The motion to strike as to injunctive relief is therefore granted.

Defendant to give notice.

9	Tashoff vs. City of San Juan Capistrano 2024-01438234	Motion for Summary Judgment and/or Adjudication Off Calendar
10	Uvina vs. Banda 2025-01501195	Motion to Be Relieved as Counsel of Record The motion by Anthony J. Nunes, of Law Office of Anthony J. Nunes, to be relieved as counsel of record for Luis Uvina, is continued to 10/26/26 at 1:30 PM in Department C11. Counsel is ordered to file a proof of service showing proper service of the moving papers on the client and all parties that have appeared. (Cal. R. Ct. Rules 3.1300(c), 3.1362(d); Code Civ. Proc., § 1013a.) Unless the proof of service is filed by 10/02/26, the motion may be taken off calendar. Counsel for plaintiff is ordered to give notice of the continuance to the client and all parties that have appeared. Motion to Set Aside/Vacate Default Defendants Luis Banda and Maria Banda's motion to vacate and set aside default is granted. Defendants move, under CCP section 473, subdivisions (b) and (d), for an order setting aside the default entered against them on 11/5/25 (ROA 20), The Court finds Defendant should be granted discretionary relief under CCP section 473, subdivision (b). The statute provides, in relevant part, that: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) If a party moves promptly for relief from default, or if the granting of the relief from default will not prejudice the opposing party (other than losing the advantage of the default), "very slight evidence is required to justify a trial court's order setting aside a default." (<i>Iott v. Franklin</i> (1988) 206 Cal.App.3d 521, 526, citing <i>Shamblin v. Brattain</i> (1988) 44 Cal.3d 474, 478.) The statute is to be "liberally construed" as "sound policy favors the

		determination of actions on their merits.” Any doubts “must be resolved in favor of the party seeking relief from default.” (<i>Shapell Socal Rental Properties, LLC v. Chico's FAS, Inc.</i> (2022) 85 Cal.App.5th 198, 212.) A motion for discretionary relief under section 473(b) must satisfy three requirements. First, the motion must be made “within a reasonable time” and “in no case exceeding six months” after the entry of default (unless relief is sought on equitable grounds). (Code of Civ. Proc. § 473, subd. (b).) Second, the motion “shall be accompanied” by a copy of the answer or other proposed pleading to be filed, “otherwise the application shall not be granted.” (Code of Civ. Proc. § 473, subd. (b).) Lastly, the motion must show that default was taken as a result of mistake, inadvertence, surprise, or excusable neglect. The Court finds all three requirements have been satisfied, here. First, the motion was timely made within approximately five months of the entry of default. (See ROA 20, 55.) Any delay was not so unreasonable as to warrant the denial of relief. Second, the motion is accompanied by a copy of the proposed answer. (See ROA 55, Exh. A.) Lastly, the motion is supported by declarations from each of the defendants, explaining the difficult health and other personal circumstances during the time they were purportedly served with process and when their default was entered. (See ROA 28.) Plaintiff’s arguments as to why relief should be denied are not persuasive in light of the liberal policy favoring relief, and in light of the circumstances presented in the moving papers. The Court, hereby, orders the Default entered against Defendants (ROA 20) to be vacated and set aside. Defendants shall file and serve their proposed answer by 9/25/26, and give notice of the ruling. Default Prove-Up Hearing Off calendar Clerk to give notice.
11	Val-Chris Investments, Inc. vs. Osoka 2025-01536941	Motion for Change of Venue (Transfer) The motion by Defendant Camelita Osoka (“Osoka”) for an order transferring this action is GRANTED. The unopposed request by Plaintiff Val-Chris Investments, Inc. (“Plaintiff”) for the Court to take judicial notice of the docket in this

action is granted. ((Evid. Code, § 452, subd. (d); *Truong v. Nguyen* (2007) 156 Cal.App.4th 865, 872, fn. 3.) Plaintiff's unopposed request for the Court to take judicial notice of Osoka's counsel's State Bar profile is granted. (*Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 193; *see, Searles Valley Minerals Operations, Inc. v. State Board of Equalization* (2008) 160 Cal.App.4th 514, 519.) Plaintiff's unopposed request to take judicial notice of the promissory note is granted. (*Salvaty v. Falcon Cable Television* (1985) 165 Cal.App.3d 798, 800, fn. 1.) Plaintiff's unopposed requests to take judicial notice of CCP sections 395, subdivision (a) and 396, subdivision (d) is granted. (Evid. Code, § 452, subd. (a).].)

Plaintiff's objections to Aberegg's declaration are overruled.

If an action was not commenced in the proper court, a party may move to transfer the action upon noticed motion before the time for the party to answer, demur or move to strike has expired. (Code Civ. Proc. § 396b, subd. (a).) The general rule is that "a defendant is entitled to have an action tried in the county of his or her residence unless the action falls within some exception to the general venue rule." (*Brown v. Superior Court* (1984) 37 Cal.3d 477, 483; Code Civ. Proc., § 395.)

"If the action is for injury to person or personal property or for death from wrongful act or negligence, the superior court in either the county where the injury occurs or the injury causing death occurs or the county where the defendants, or some of them reside at the commencement of the action, is a proper court for the trial of the action." (Code Civ. Proc., § 395, subd. (a).) "If none of the defendants reside in the state or if they reside in the state and the county where they reside is unknown to the plaintiff, the action may be tried in the superior court in any county that the plaintiff may designate in his or her complaint." (*Id.*)

The "moving party must overcome the presumption that the plaintiff has selected the proper venue." (*Fontaine v. Superior Court* (2009) 175 Cal.App.4th 830, 836.) The burden is on the moving party "to demonstrate that the plaintiff's venue selection is not proper under any of the statutory grounds." (*Id.*)

If it appears that the action or proceeding was not commenced in the proper court, the Court shall order the action or proceeding transferred to the proper court. (Code Civ. Proc., § 396b, subd. (a).)

The Court may change the place of trial when the convenience of witnesses and the ends of justice would be promoted by the change.

(Code Civ. Proc. § 397, subd. (c).) However, the Court “will not entertain a motion for change of venue on the ground of convenience of witnesses when the defendant has not filed an answer, for the reason that until the issues are joined the court cannot determine what testimony will be material” and “a motion for change of venue cannot be defeated on the ground of convenience of witnesses until an answer is filed.” (*Cholakian & Associates v. Superior Court* (2015) 236 Cal.App.4th 361, 368.)

“[T]he right of *each* defendant to defend in its own county cannot be forfeited by the actions of *other* defendants, the answers of *other* defendants cannot take the place of each defendant’s *own* answer, necessary to permit consideration of opposition to that same defendant’s motion to transfer venue. (*Cholakian & Associates v. Superior Court*, 236 Cal.App.4th at 371.) Accordingly, all proper defendants must file an answer “before an opposition to a motion to transfer to a correct court will be considered on the basis of convenience of witnesses or the ends of justice.” (*Id.*, at 372.)

“In its discretion, the court may order the payment to the prevailing party of reasonable expenses and attorney’s fees incurred in making or resisting the motion to transfer whether or not that party is otherwise entitled to recover his or her costs of action. In determining whether that order for expenses and fees shall be made, the court shall take into consideration (1) whether an offer to stipulate to change of venue was reasonably made and rejected, and (2) whether the motion or selection of venue was made in good faith given the facts and law the party making the motion or selecting the venue knew or should have known. As between the party and his or her attorney, those expenses and fees shall be the personal liability of the attorney not chargeable to the party. Sanctions shall not be imposed pursuant to this subdivision except on notice contained in a party’s papers, or on the court’s own noticed motion, and after opportunity to be heard.” (Code Civ. Proc., § 396b, subd. (b).)

“The statute requires the court to assess whether the attorney acted in good faith after having first skillfully evaluated the facts and reviewed applicable statutes and case law. The phrase ‘good faith’ is ordinarily used to describe that state of mind denoting honesty of purpose, freedom from intention to defraud, and, generally speaking, means being faithful to one’s duty or obligation. (*People v. Nunn* (1956) 46 Cal.2d 460, 468 (296 P.2d 813).) Thus, if, after reviewing the factual and legal presentation made by the losing party, the court finds that no reasonable attorney would have honestly chosen such a forum, and that the forum appears to have been selected to impair defendant’s

right to defend, an award of attorney fees would be entirely proper.” (*Metzger v. Silverman* (1976) 62 Cal.App.3d Supp. 30, 38-39.)

“The statute also requires the attorney filing an action, or one opposing a motion for a change of venue, to carefully investigate the facts with a view of determining which court is proper for the trial of the action. If, following a thorough investigation, the attorney has an honest and reasonable belief that his client has a tenable contention, and he believes that he can establish the existence of such facts supporting his choice of venue to the satisfaction of the court, this part of his task is complete.” (*Id.*, at 39.)

“Finally, a lawyer is expected to possess knowledge of those plain and elementary principles of law which are commonly known by well informed attorneys, and to discover those additional rules of law which, although not commonly known, may be readily found by standard research techniques. If the law on a particular subject is doubtful or debatable, an attorney will not be held responsible for failing to anticipate the manner in which the uncertainty will be resolved. But even with respect to an unsettled area of the law, an attorney assumes an obligation to his client to undertake reasonable research in an effort to ascertain relevant legal principles and to make an informed decision as to a course of conduct based on an intelligent assessment of the problem.” (*Id.*)

When “transfer is sought solely, or is ordered, because the action or proceeding was commenced in a court other than that designated as proper by this title,” the costs and fees of the transfer and of filing the papers in the court to which the transfer is ordered shall be paid by the plaintiff before the transfer is made. (Code Civ. Proc., § 399, subd. (a).)

Osoka met her burden to show this action was not commenced in the proper court. When the gravamen of the cause of action is fraud, the “action in fraud is transitory and is triable in the county of defendant’s residence.” (*Quick v. Corsaro* (1960) 180 Cal.App.2d 831, 834-835.) There is no dispute that Osoka does not reside in Orange County and that Osoka resides in Santa Clara County. (Aberegg Decl., ¶ 2.)

Plaintiff did not show Orange County is a proper venue. Although the loan agreement was purportedly entered into and to be performed in Orange County, Plaintiff’s complaint is not based on contract. Nor is Plaintiff attempting to rescind the agreements. (*See*, Complaint, Prayer, 11:1-15.) Plaintiff’s complaint alleges causes of action for fraudulent concealment, fraud in the inducement, and tort of another against Osoka.

		Although Avington filed an answer to the complaint, Osoka had not yet filed an answer. Accordingly, the Court need not consider Plaintiff's opposition on the ground of witness convenience. (<i>Cholakian & Associates v. Superior Court</i>, 236 Cal.App.4th at 368 and 372.) Within 10 days, Osoka shall submit a proposed order for the Court's signature. The order must contain at least the following: (1) the Court orders this matter be transferred to the Superior Court of California for the County of Santa Clara County, upon payment of all the necessary fees required by law; (2) Plaintiff is to pay transfer fees and costs no later than 60 days from service of the notice of the transfer order; (3) the basis of the transfer is because venue is proper in Santa Clara; (4) the clerk of this court is authorized to transfer all the pleadings and papers herein to the clerk of the receiving court; (5) the court, division, and address where the case is being transferred; and (6) if those costs and fees are not paid within 60 days after service of notice of the transfer order, the court on a duly noticed motion by any party may dismiss the action without prejudice to the cause on the condition that no other action on the cause may be commenced in another court prior to satisfaction of the court's order for costs and fees. (Code Civ. Proc., § 399, subd. (a).) The court hereby sets a hearing on an order to show cause re: dismissal for January 11, 2027 at 9:00 am in Department C11. The Case Management Conference is vacated. The court will hear argument on sanctions specifically, as to whether Plaintiff's counsel acted in good faith (the Court's tentative finding is that Plaintiff's counsel did act in good faith) and whether an offer by Osaka to stipulate to jurisdiction in Alameda County was a reasonable offer to stipulate under Code Civ. Proc., § 396b, subd. (b) (the Court's tentative finding is that is was reasonable). Case Management Conference Off calendar
12	Williams vs. West Coast Casters & Wheels, Inc.	Motion for Leave to Amend Before the Court is Defendants West Coast Casters & Wheels Inc., Kevin P. Manok, and Denise Renee Brady's Motion for leave to file a first amended answer to Plaintiff Florina Williams' Complaint.

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The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. (Code Civ. Proc., § 473, subd. (a)(1).) The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., § 473, subd. (a)(1).) Additionally, any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order. (Code Civ. Proc., § 576.)

“Ordinarily, courts should ‘exercise liberality’ in permitting amendments at any stage of the proceeding. [Citations.] In particular, liberality should be displayed in allowing amendments to answers, for a defendant denied leave to amend is permanently deprived of a defense. [Citations.]” (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159.) Factors weighing against granting a defendant leave to amend an answer include unexplained delay, lack of diligence, and prejudice to the opposing party. (*Ibid.*)

Because the policy favoring amendment is so strong, “it is a rare case in which a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.” (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530 [internal quotations omitted].) However, liberality only applies so long as there is no prejudice to the opposing party. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564.) Denial of leave to amend is appropriate where inexcusable delay and probable prejudice to the opposing party is shown. This may happen where a proposed amendment opens up an entirely new field of inquiry without any satisfactory explanation as to why the major change in point of attack had not been made long before trial. (*Estate of Murphy v. Gulf Ins. Co.* (1978) 82 Cal.App.3d 304, 311.)

If the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. (*Hirsa v. Superior Court* (1981) 118 Cal. App. 3d 486, 490; *Melican v. Regents of Univ. of Calif.* (2007) 151 Cal. App. 4th 168, 176; *Fisher v. Larsen* (1982) 138 Cal. App. 3d 627, 649 (finding where plaintiff knew for over five months that certain claims had not been properly pleaded, and took no action to amend until after a summary judgment had been granted against it, it was not an abuse

of discretion to deny leave to amend the complaint); *Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150.) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, added costs of preparation, or an increased burden of discovery. (See *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488 [trial court's denial of leave to amend was proper where those factors were present].)

California Rules of Court, rule 3.1324 requires that a motion to amend include a copy of the proposed amendment or amended pleading, identify by page, paragraph, and line number any additions to and deletions from the prior pleading, and a supporting declaration that specifies:

- (1) The effect of the amendment;
- (2) Why the amendment is necessary and proper;
- (3) When the facts giving rise to the amended allegations were discovered; and
- (4) The reasons why the request for amendment was not made earlier.

(Cal. Rules of Court, rule 3.1324(a), (b).)

Here, the Court finds that the procedural requirements are met.

A copy of the proposed amendment or amended pleading is a requirement of Rule of Court, rule 3.1324 so that parties and the Court are certain that the amended pleading conforms to the representations made in the motion for leave to amend.

Here, the Motion attaches the proposed First Amended Answer as Ex. D.

As to the merits, Plaintiff argues a long delay resulting in prejudice. She says that the parties have been engaged in discovery for nearly two years against the operative pleading.

But there is no trial date. Further, the Cross-Complaint, filed concurrently with the initial Answer, makes clear that Defendants are alleging Plaintiff stole from them. Further, the Complaint alleges that Plaintiff is owed wages and thus her status as exempt or non-exempt was already at issue. Thus, the new affirmative defenses are not opening up any new lines of inquiry.

The Court notes, however, that one of the Moving Parties has died. Defendant Kevin Manok died on 5/10/26. (See ROA 211, Declaration of the Successor in Interest to the decedent.) There is now a Motion

		pending to substitute into the case on Defendant/Cross-Complainant's behalf – set for 11/2/26. (See ROA 224.) The presence and continued participation in the action of the decedent's attorney is not sufficient as the power and authority of the attorney terminate with the client's death. (<i>Herring v. Peterson</i> (1981) 116 Cal.App.3d 608, 612; <i>accord, Pham v. Wagner Litho Machinery Co.</i> (1985) 172 Cal.App.3d 966, 972–73, following <i>Swartfager v. Wells</i> (1942) 53 Cal.App.2d 522, 527–28; Civil Code § 2356 (agency is terminated by death of principal). However, this Motion was filed before he died, on 1/15/26, and thus with authority. Thus, the Court grants the Motion as to all three Defendants. The court sets a Case Management Conference on January 11, 2027 at 9:00 a.m. Defendant to give notice.
13	Woodside Credit, LLC vs. Tissera 2025-01521042	Application/Request Case Management Conference Order to Show Cause re: Dismissal Off Calendar
14	Holland vs South Orange County Community College District 2022-01265727	Motion to Compel Compliance with Deposition Subpoena Continued to 10/27/2026 at 9:00 AM in Dept. CM02
15	Lopez vs Trans Pak, Inc. 2024-01437506	Case Management Conference Off Calendar